

Court No. - 36

Case :- WRIT - C No. - 15690 of 2011

Petitioner :- Girand Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- H.M. Srivastava, Neeraj Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

As prayed on behalf of Sri H.M. Srivastava, learned counsel for the petitioner, put-up this case as fresh on 24.03.2011.

Order Date :- 15.3.2011

Kpy

Court No. - 36

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Respondent :- State Of U.P. And Others

Petitioner Counsel :- H.M. Srivastava, Neeraj Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

On prayer made by Sri Raj Shekhar Srivastava, holding brief of Sri Rajesh Tripathi, learned counsel for the Respondent Nos. 2 to 4, the case is directed to be put up as fresh on 6.4.2011 so as to enable him to seek instructions in the matter.

Order Date :- 24.3.2011

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Court No. - 36

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Petitioner Counsel :- H.M. Srivastava, Neeraj Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

On prayer made by Shri Subhash Gosain, holding brief for Shri Rajesh Tripathi, learned counsel for the respondent nos. 2 to 4, the case is directed to be put-up as fresh on 21.4.2011 so as to enable him to obtain instructions, as mentioned in the Order dated 24.3.2011.

Order Date :- 6.4.2011

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Court No. - 36

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Petitioner :- Girand Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- H.M. Srivastava, Neeraj Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

Sri Rajesh Tripathi, learned counsel for respondent nos.2 to 4, states that instructions have been received by him but certain further instructions/clarifications are required.

On his request the case is directed to be put up on 27.4.2011 as fresh.

Order Date :- 21.4.2011

AKJ

Court No. - 36

Case :- WRIT - C No. - 15690 of 2011

Petitioner :- Girand Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- H.M. Srivastava, Neeraj Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

Case called out. None is present for the petitioner.

Put-up as fresh on 5th May, 2011.

Order Date :- 27.4.2011

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Court No. - 37

Case :- WRIT - C No. - 15690 of 2011

Petitioner :- Girand Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- H.M. Srivastava, Neeraj Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble R.K. Agrawal, J.

Hon'ble Bharati Sapru, J.

As prayed put up as a fresh case on 10th May, 2011.

Order Date :- 5.5.2011

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Court No. - 36

Case :- WRIT - C No. - 15690 of 2011

Petitioner :- Girand Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- H.M. Srivastava, Neeraj Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

It is submitted by Shri H.M. Srivastava, learned counsel for the petitioner that pursuant to the directions given in the Order dated 3.12.2004 passed in Civil Misc. Writ Petition No. 51381 of 2004, the petitioner filed a Representation before the Executive Engineer concerned. The said Representation was disposed of by the Executive Engineer concerned by the Order dated 28.2.2005 (Annexure 7 to the Writ Petition). Thereafter, the petitioner filed a Writ Petition, namely, Civil Misc. Writ Petition No. 36664 of 2005 before this Court. The said Writ Petition was disposed of by this Court by the Order dated 4th May, 2005 on the ground that the petitioner could file Appeal under the provisions of the U.P. Electricity Supply Code, 2005 against the said Order dated 28.2.2005.

It is submitted that the petitioner thereafter filed an Appeal before the Superintending Engineer concerned (Appellate Authority). However, the said Appeal has not so far been disposed of by the Appellate Authority, and instead, recovery proceedings have been initiated by issuance of the Recovery Certificate dated 31.1.2011 (Annexure 13 to the Writ Petition).

Shri Subhash Gosain, holding brief for Shri Rajesh Tripathi, learned counsel for the respondent nos. 2, 3 and 4 states that instructions have been received by Shri Rajesh Tripathi, and as per the instructions, the Recovery Certificate dated 31.1.2011 has been issued in regard to the arrears of electricity dues in respect of the regular consumption of electricity by the petitioner.

Shri Gosain further states that besides the recovery being made against the petitioner in regard to regular consumption of electricity, there is another matter of theft of electricity pending against the petitioner but the same is not the subject-matter of the said Recovery Certificate dated 31.1.2011.

Shri Gosain, however states that no instructions have been

received as regards the Appeal allegedly filed by the petitioner pursuant to the said Order dated 4th May, 2005 passed by this Court.

The matter requires consideration.

Issue notice pending admission.

Notice on behalf of the respondent nos. 1 and 5 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent nos. 2, 3 and 4 has been accepted by Shri Rajesh Tripathi, learned counsel for the said respondents.

Therefore, no notice need be sent to the respondents.

Counter Affidavit on behalf of the respondents may be filed within six weeks.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case on 25th July, 2011.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that recovery proceedings against the petitioner pursuant to the Recovery Certificate dated 31.1.2011 (Annexure 13 to the Writ Petition) will remain stayed till the next date fixed in the matter provided within four weeks from today, the petitioner deposits an amount of Rs. 2,45,000/- with the respondent no. 4.

The deposit so made by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

In the event of failure on the part of the petitioner in making the deposit, as directed above, this order will stand automatically vacated.

Order Date :- 12.5.2011

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Court No. - 36

Case :- WRIT - C No. - 15690 of 2011

Petitioner :- Girand Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- H.M. Srivastava, Neeraj Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Yatindra Singh, J.

Hon'ble Kashi Nath Pandey, J.

1. This writ petition is against the recovery proceeding for payment of electricity dues.
2. We have heard Counsel for the petitioner, Sri Rajesh Tripathi for Power Corporation and the Standing Counsel for the respondents.
3. In the circumstances of the case, the petitioner may file a representation before Executive Engineer, Electric Distribution Division, UP Power Corporation Ltd (Respondent-4). In case any representation is filed within two weeks from today, it may be decided by concerned Executive Engineer by a speaking order, if possible, within one month from the date of receipt of the representation. The petitioner will file a certified copy of this order; other necessary documents and a duly stamped self-addressed envelope along with his representation. The concerned Executive Engineer after taking decision on the representation will communicate the same to the petitioner.
4. In case the petitioner deposits half of the disputed amount along with his representation before respondent-4, then the recovery proceeding shall remain in abeyance till disposal of his representation. In case any amount has been deposited by the petitioner then that would be adjusted while calculating the amount to be deposited in pursuance of this order.
5. With these observations the writ petition is disposed of.

Order Date :- 25.7.2011

SK Singh